

HOUSE No. 1623

The Commonwealth of Massachusetts

PRESENTED BY:

Mike Connolly

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act banning the use of tear gas by law enforcement.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Mike Connolly</i>	<i>26th Middlesex</i>	<i>1/14/2025</i>

HOUSE No. 1623

By Representative Connolly of Cambridge, a petition (accompanied by bill, House, No. 1623) of Mike Connolly relative to banning the use of tear gas by law enforcement. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1425 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act banning the use of tear gas by law enforcement.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 6 of the General Laws is hereby amended by inserting after section 116K, as
2 added by chapter 253 of the acts of 2020, the following section:-

3 SECTION 116L. (a) No law enforcement officer, law enforcement agency or department
4 shall purchase, obtain, use or allow to be used for law enforcement purposes on any person, a
5 chemical or substance that can produce rapidly in humans, sensory irritation or disabling
6 physical effects within a short time of exposure. Examples of such substance include “tear gas”
7 or “CS gas”.

8 (b) Whoever violates this section shall be punished by a criminal fine of \$5,000.